

remove the note in question from the bulletin board”;

- “the [Competent Sector] of the Municipal Police, in response to the complaint, has taken measures to ensure that sensitive information is not publicly displayed in the future”;
- “the Municipality has reiterated its commitment to protecting personal data and ensuring compliance with applicable regulations”;

3. Conclusions.

Based on the documentation reviewed and the responses provided by the Municipality, it is evident that there was a breach of the principles of personal data protection as outlined in the applicable legislation. The dissemination of the note containing personal health information and evaluations of the complainant's conduct to unauthorized individuals constitutes a violation of the confidentiality obligations imposed by the General Data Protection Regulation (GDPR) and the Italian Data Protection Code.

Therefore, the Authority deems it necessary to take action to ensure compliance with data protection regulations and to prevent similar incidents in the future.

DECISION

The Authority, having regard to the above considerations, issues the following order:

1. The Municipality of Siacca is hereby instructed to implement appropriate measures to ensure that personal data, particularly sensitive data, is not disclosed to unauthorized parties and is handled in accordance with the principles of necessity and proportionality as set forth in the GDPR.
2. The Municipality is required to provide a report to the Authority within 30 days of the notification of this decision, detailing the measures taken to comply with this order and to prevent future violations.
3. The Authority reserves the right to monitor compliance with this order and to take further action if necessary.

This decision is made in accordance with the powers conferred upon the Authority by the GDPR and the Italian Data Protection Code.

Rome, 27 February 2025

THE PRESIDENT

Prof. Pasquale Stanzione

remove the criticality as soon as the manager becomes aware of it [...] despite the uncertainty regarding the actual identification of the individual who posted the document on the bulletin board, measures will be taken [...] to formally apologize to the interested party for what happened.” Attached to the aforementioned response, the Municipality produced, among other things, a copy of a report drafted by the then Head of the relevant Local Police sector, who stated, in particular, that:

- “[...] the note [subject of the complaint] is addressed, in response and resolution, to the [complainant] and, for information, also to the Mayor (and to the delegated Councillor on the matter) and to the General Secretary of the Municipality [...], since these institutional subjects have been involved in the (alleged) issues concerning the PM service by the same [complainant], and it was therefore deemed necessary to continue the dialogue initiated in the ways identified by the interested party himself”;
- “the dialogue by the Manager with members of the Municipal Police Corps concerning the operational methods of the service (and any critical issues that may arise during it), [should] be brought to the attention of the Subjects who, within the Entity, hold positions of direction and coordination of the general administrative action (and, in the case of the General Secretary, control over the correct conduct of administrative procedures and activities, in compliance with the principles of transparency and anti-corruption)”;
- “the issues highlighted by the [complainant] and that [...] would create criticalities both in terms of the regular execution of the activities assigned to the PM personnel and, above all, dangers and/or threats to the safety of the workers in the same workplace, have therefore been brought to the attention of the

other employees of the Command”;

- “this was done by posting the response note to the [...] complainant [...] on the internal bulletin board of the Municipal Police Command, which is regularly used for various communications of interest to the Command personnel”;

- “the note [...] remained displayed on the bulletin board for a short time (to the writer's recollection, no more than two/three days), which constitutes, in itself, a so-called ‘operational’ bulletin board, locked, reserved for the viewing/consultation of only those belonging to the Command, where, almost daily, the personnel of the Administrative Section posts new documentation and ‘removes’ previously displayed material, updating its content”;

- “the ‘incident’ concerning the injury that occurred in service to the [complainant] has been fully and widely known within the Municipality [...], overall considered”;

- “already the day after the occurrence of the harmful event, all members of the Command [...] were aware of it, both those who were present at the time of its occurrence [...], and those who, in the following hours, were called to ‘deal with it’ for reasons related to their official duties”;

- “the personnel belonging to the Administrative Section of the Command [...] has processed the ‘case’ in accordance with the law, interacting on one side with the Municipality's Personnel Office and, on the other, with INAIL for the (possible) recognition of the cause of service for work-related injury”;

- “the municipal personnel on duty at the Protocol Office received and ‘processed’ all medical certificates that were submitted by the same interested party and that [...] were all complete with every data, ‘in clear’, concerning the injured party and the pathology that affected him. No confidentiality precautions were adopted regarding this medical certification, which, on the contrary, the [complainant] himself submitted via personal PEC addressed to the Municipality, fully aware of the procedures that it implements in managing correspondence received from outside.”

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the Municipality carried out a processing of the personal data of the complainant contained in the note of XX (prot. n. XX), also relating to health status, consisting of making them available to unauthorized subjects, in violation of Articles 5, paragraph 1, letter a), 6 and 9, paragraph 2, letter b), of the Regulation, as well as 2-ter of the Code.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). The Municipality neither submitted a defensive memorandum nor requested to be heard, having limited itself to indicating the elements it deemed useful, among those identified by Article 83, paragraph 2, of the Regulation, to allow the Authority the most complete assessment regarding the possible application of an administrative pecuniary sanction and the determination of its amount (see Municipality's note of XX, prot. n. XX). In particular, it was highlighted that:

- “the number of interested parties involved in the violation is equal to one individual, and the dissemination of the violation is limited to the scope of the PM Command and to the person of the Mayor, of

Secretary and Councillor for the relevant competencies
subject of the note”;

- “the notice on the bulletin board was removed after a few days (about three) [...]; furthermore, once aware of the situation [...] [it was] immediately arranged for the removal of all bulletin boards present within the Command”;

- “the information regarding the health status of the person [was] decontextualized within the same communication.”

3. Outcome of the investigative activity.

As a result of the investigation related to the complaint, it was established that, in response to a note from the complainant dated XX (prot. n. XX), in which he reported critical issues concerning his safety, deemed relevant for the purposes of Legislative Decree 81/2008 on workplace safety, the then Head of the relevant sector of the local Police provided a response to the complainant with a note dated XX (prot. n. XX), including among the recipients of the same also the Mayor and the General Secretary of the Municipality, as well as the Councillor for Municipal Police, also arranging for the communication of said note "to all personnel of the PM Command of Siacca (through posting on the internal bulletin board)."

The note in question - in addition to reiterating the content of the report, in which the complainant had expressed his concerns regarding the organizational choices made about the conduct of the local police agents' service - contains numerous personal data relating to the interested party and, in particular, the circumstance that the complainant was benefiting from certain legal provisions and that he had been absent from service "due to injury to [affected body part]," as well as personal observations made by the aforementioned Director regarding the overall conduct of the complainant.

That said, it must first be noted that, as a result of the sending of the aforementioned note dated XX (prot. n. XX) and its posting on the bulletin board of the Municipal Police Corps, the recipients of the same, as well as all members of the Municipal Police Corps, were made aware of a personal data relating to the health status of the complainant, namely a reference to an injury, albeit without indicating the diagnosis, and to the complainant's absence from service due to illness. In this regard, it should be emphasized that, within the regulatory framework of the Regulation and according to the constant orientation of the Guarantor, the notion of personal data related to health "may also include information regarding absence from service due to illness, regardless of whether the diagnosis is explicitly indicated at the same time" (see provisions of March 23, 2023, n. 84, web doc n. 9888113; December 15, 2022, n. 420, web doc n. 9853429; September 16, 2021, n. 319, web doc n. 9704048; February 25, 2021, n. 68, web doc n. 9567429; May 7, 2015, n. 269, web doc n. 4167648; October 10, 2013, web doc n. 2753605; July 7, 2004, web doc n. 1068839 and 1068917; see also par. 8 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector," adopted during the previous regulatory framework on data protection with provision of June 14, 2007, n. 23, web doc n. 1417809).

This is in accordance with the jurisprudence of the Court of Justice of the European Union, according to which "the expression 'data related to health' [...] must be given a broad interpretation that encompasses information concerning all aspects, both physical and mental, of a person's health," with the Court having included in this notion information regarding a person who had "injured a foot and [was] on partial sick leave" (judgment C-101/01, Lindqvist, November 6, 2003, paras. 13 and 50). A broad interpretation of the notions of "special categories of personal data" and "sensitive data" is, in fact, "supported by the objective of Directive 95/46 and the [Regulation] [...], which is to ensure a high level of protection of the rights and fundamental freedoms of natural persons, in particular their private life, with regard to the processing of personal data concerning them" (judgment C-184/20, Vyriausioji tarnybinės etikos komisija, August 1, 2022, para. 125), considering that the processing of such special categories of data "may constitute a particularly serious interference with the fundamental rights to respect for private life and the protection of personal data, guaranteed by Articles 7 and 8 of the Charter of Fundamental Rights" (judgment C-667/21, Krankenversicherung Nordrhein, December 21, 2023, para. 41; see also rec. 51 of the Regulation, according to which "personal data that, by their nature, are particularly sensitive in terms of fundamental rights and freedoms deserve specific protection, since the context of their processing could create significant risks to fundamental rights and freedoms").

Also in national law, the jurisprudence of legitimacy has affirmed that "it cannot be doubted that an absence from work 'due to illness' constitutes a personal data 'related to health' of the subject to whom the information refers" (Cass. civ., sez. I, August 8, 2013, n. 18980; see also Cass. civ., sez. I, ord. October 11, 2023, n. 28417, where it is stated that "the simple reference to an absence from work 'due to illness' constitutes a personal data 'related to health' of the subject to whom the information refers").

The reference in the note in question to information regarding the health status of the complainant and his absence due to illness, being entirely irrelevant with respect to the

The issue raised by the complainant, which pertains to workplace safety, constitutes a processing of personal data that cannot be deemed necessary in the context in question and has resulted in the knowledge of such sensitive information by unauthorized individuals. The same considerations apply to the other personal data of the complainant (namely, the fact that he was receiving certain benefits provided by law; that he had made a report; the personal observations of the Manager regarding the overall conduct of the complainant). The reported issue, related to safety conditions at work, could indeed have been brought to the attention of both the administrative leaders of the Municipality and the members of the local Police Force without making specific references to the worker, the content of the report, and the details regarding his personal situation.

As far as the posting of the note in question on the bulletin board of the local Police, accessible to all members of the local Police Force, is concerned, it must be emphasized that the personal data of employees cannot be disclosed to individuals other than those who are part of the specific employment relationship (see the definitions of "personal data" and "data subject" in Article 4, paragraph 1, no. 1, of the Regulation) or to those who, even taking into account the definition of "third party" contained in Article 4, paragraph 1, no. 10, of the Regulation, are not authorized to process them, due to the assigned duties and the organizational choices of the data controller.

As clarified by the Authority, if bulletin boards are used in workplaces to convey information of common interest, it is not permissible to make personal data relating to matters concerning health, private and family life, or the specific employment relationship of each worker available to other workers (see decisions of May 27, 2021, no. 214, web doc no. 9689234; June 18, 2020, no. 105, web doc no. 9444865; and July 2, 2020, no. 124, web doc no. 9445567; see also decisions of July 3, 2014, no. 341, web doc no. 3325317; July 31, 2014, no. 392, web doc no. 3399423, but see also the "Guidelines on the processing of personal data of workers for the management of the employment relationship in the public sector of June 14, 2007," web doc no. 1417809, particularly paragraphs 5.1, 5.2, and 5.3). In the present case, however, the note in question, containing personal data also related to the health of the complainant, was posted on the bulletin board at the local Police headquarters, thereby making its content known to all personnel on duty.

In light of all the preceding considerations, it must be concluded that the conduct of the Municipality violates Articles 5, paragraph 1, letter a), 6, and 9, paragraph 2, letter b), of the Regulation, as well as Article 2-ter of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for in Article 11 of the Regulation of the Authority no. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having communicated the personal data of the complainant, including those related to health status, to unauthorized individuals, in violation of Articles 5, paragraph 1, letter a), 6, and 9, paragraph 2, letter b), of the Regulation, as well as Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or interconnected treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are all subject to the sanction provided for in Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Authority pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Authority no. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this specific case the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- the violation concerned only one individual (Article 83, paragraph 2, letter a), of the Regulation);
- as stated by the Municipality, the notice was posted on the bulletin board for a short period of time ("the notice on the bulletin board was removed after a few days (about three)"), having been subsequently reposted, near the section dedicated to union communications, by an unidentified person and not by the Municipality itself (Article 83, paragraph 2, letter a), of the Regulation);
- the violation was negligent (Article 83, paragraph 2, letter b), of the Regulation);
- the health data of the complainant, subject to processing, did not relate to serious conditions (cf. Article 83, paragraph 2, letter g), of the Regulation);
- nonetheless, judgments and evaluations regarding the overall conduct of the complainant, which are not of disciplinary relevance, were made public and could potentially harm the complainant's reputation in the workplace (cf. Article 83, paragraph 2, letters a) and g), of the Regulation);

it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, considering that the data controller is a medium-sized Municipality (approximately 38,700 inhabitants), it is believed that, for the purpose of quantifying the sanction, the following circumstances should be taken into account:

- the Municipality has offered good cooperation with the Authority during the investigation, having, moreover, chosen, in order to prevent similar incidents in the future, to completely remove the bulletin boards located in the offices of the Local Police Command (Article 83, paragraph 2, letter f), of the Regulation);
- there are no previous relevant violations committed by the Municipality (Article 83, paragraph 2, letter e), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,500 (two thousand five hundred) for the violation of Articles 5, paragraph 1, letter a), 6 and 9, paragraph 2, letter b), of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction

order on the Authority's website should proceed. This is in consideration of the fact that, as highlighted above, the violation also concerned judgments and evaluations regarding the overall conduct of the complainant, which are not of disciplinary relevance, that could potentially harm the complainant's reputation in the workplace.

Finally, it is noted that the conditions referred to in Article 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Municipality of Sciacca for violation of Articles 5, paragraph 1, letter a), 6 and 9, paragraph 2, letter b), of the Regulation, as well as Article 2-ter of the Code, as detailed in the reasoning;

ORDERS

the Municipality of Sciacca, represented by the legal representative pro tempore, with registered office at Via Roma, 13 - 92019 Sciacca (AG), Tax Code 00220950844, to pay the sum of €2,500 (two thousand five hundred) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,500 (two thousand five hundred) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law no. 689/1981;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of the injunction order on the Authority's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Regulation of the Authority no. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 27, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei